

TENTATIVE RULING:

On the court's own motion Defendant's Motion for Separate Trials is continued to January 3, 2022 at 8:30 a.m. in Department 1.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

20-CVC-11702

ADAMS, JAMES

VS.

FAR HORIZONS TRAILER VILLAGE LLC

CIVIL MISCELLANEOUS MOTION

TENTATIVE RULING:

The court notes Defendant's objection to the court considering Plaintiffs' Opposition, as it was untimely served. The court has read and considered the Opposition and rules as follows:

Defendant's Motion for Separate Trials on Issues of Liability and Damages is GRANTED.

Summary of Motion

Defendant SUN 49er contends that severance of the liability and damages issues would promote judicial economy, increase potential settlement, and avoid prejudice to Defendant SUN 49er.

Defendant argues that due to Plaintiff ADAMS intoxication at the time of the fall, liability is strongly contested, but will only take 5 days or less to try, including jury selection, while the damages issues are more complex, and due to the number of witnesses and expert witnesses, will take closer to 30 to 35 days to try. (Witzman Decl., ¶ 3, ¶ 9.) Defense counsel's declaration in support of the motion to bifurcate indicates counsel has analyzed the case and anticipates that in addition to Plaintiff's 21 treatment providers, and rebuttal experts, experts such as the following will be called on both sides: toxicologists, life care planners, economists, vocational rehabilitation specialists, family and friends of the Plaintiffs and anyone who can speak to the emotional issues involved with Plaintiffs' alleged injuries, neurologist, neuropsychologist, pain management, life care planner, medical billing expert, and economist. (Witzman Decl. ¶ 9.)

Defendant raises concerns regarding the prejudicial impact to Defendant if liability and damages are not bifurcated. Plaintiff sustained serious life altering injuries. Defendant raises concerns that the risk of jury sympathy to Plaintiff's severe injuries may impact the determination of liability.

Defendant asserts it would be most efficient to determine liability before going forward with the time and expense associated with trial on damages, and would eliminate concerns regarding prejudice.

Summary of Opposition

Plaintiff indicates bifurcation will result in witness inconvenience and delay justices, result in a significant increase in expense to the parties as well as time burden on a catastrophically injured plaintiff. Further, that finding jurors who will time qualify for a bifurcated trial that could last for more than 1 month will dramatically increase the time spent on voir dire. Plaintiff estimates that the bulk of the trial will be spent on the issue of liability, not on damages. (Tiemann Decl. ¶¶ 7- 15.)

In support of this, Plaintiff indicates that although Defendant claims that the Plaintiffs had "spent dozens of days at the resort" prior to the incident, Defendant has failed to produce any documentation supporting that claim, and it remains an issue that will take up the bulk of trial time. (Tiemann Decl. ¶¶ 7- 15.) In reply, Defendant indicates Plaintiff's own deposition testimony indicates they have been to the resort dozens of times and that is a discovery issue, not a trial issue.

Law & Analysis

"The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action" (CCP § 1048(b).) For example, when trial of one issue will dispose of the rest of the action judicially, or create a high probability of settlement, or when one claim or issue can be quickly resolved where the other issues require extensive discovery, bifurcation is appropriate. (Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 888.) Additionally, "[t]he court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order ... that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case" (CCP § 598.)

The opposition indicates that Defendant's motion should be denied because liability and damages are so intertwined as to make it improper, as the nature and severity of the injury tends to inform the mechanism of the fall. The issues are inextricably interwoven by virtue of the parties' dispute by virtue of the parties' dispute over fault, including any comparative fault.

Plaintiff's argument that bifurcation is inappropriate because the issues of liability and the injuries sustained are "inextricably intertwined and cannot be separated" is inappropriate. (Opposition at 2:25.) Defendant's liability for premises liability and the injuries sustained by Plaintiff are separate issues and do not appear to have intertwined evidence.

Here, bifurcation is appropriate for several reasons. It will promote judicial efficiency. It will likely result in greater convenience to the witnesses, there is no indication that prejudice will result to Plaintiff and some indication that denying the motion to bifurcate will prejudice Defendant. Lastly, there is an inadequate showing of overlapping issues.

First, bifurcation will promote judicial efficiency. If the liability phase is bifurcated from damages, about 8-10 witnesses for each side will likely testify as to liability, as opposed to at least 21-40 witnesses if the issue of damages is included. If the jury finds in favor of Defendant on the issue of liability, it is likely the case will settle or otherwise not proceed.) If the jury finds against Defendant on the issue of liability, bifurcation is still likely to reduce the overall length of trial because Defendant may be more likely to settle.

Next, for the same reasons outlined above, bifurcation will result in greater convenience to the witnesses. According to Plaintiff's counsel, bifurcation would result in duplication of crossover witnesses who will provide testimony regarding both liability and damages. However, counsel identifies these witnesses as only the Plaintiffs, one eyewitness, and a neurosurgeon. (Opposition at 6:6-8.)

Finally, there is little evidence that Plaintiff will suffer any prejudice as a result of bifurcation. Any amount of prejudice that Plaintiff will suffer is outweighed by the prejudice that may be avoided by bifurcation. The damages in this case are extensive, so it is likely that bifurcation will actually help to avoid the possibility of Defendant being prejudiced; bifurcation will prevent the jury from improperly considering Plaintiff's injuries during the liability phase.

